HARLEY MILLER Law Firm

Law and Resort Management

2025

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INTRODUCTION

The resort tourism sector in Vietnam is experiencing strong growth, especially in the post-COVID-19 era, as the demand for high-quality vacation experiences continues to rise. According to the Tourism Information Technology Center (TITC), Vietnam welcomed 12.6 million international visitors in 2023—nearly 3.5 times higher than in 2022 and 57% above the initial target of 8 million. This surge has fueled a recovery and investment boom in resort development across the country. However, launching a resort project requires not only significant capital but also strict compliance with a complex web of legal regulations, ranging from licensing conditions and administrative procedures to standards in construction, environmental protection, and fire safety. This article provides a comprehensive overview of the legal framework governing resort investment and operations, aiming to help investors and businesses better understand the legal process, avoid unnecessary risks, and effectively leverage current investment incentive policies.

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OVERVIEW OF RESORT INVESTMENT

Refer to the full article at: Vietnam Resort Investment Law 2025: Comprehensive Guide

1. Licensing Conditions

2. Resort Investment Procedure

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OVERVIEW OF RESORT INVESTMENT

1. Licensing Conditions

1. Establish a business entity
2. Meet investor requirements:
   - Not banned or suspended by authorities
   - Ensure financial safety ratios
   - Minimum equity: 20% (projects <20 ha) or 15% (≥20 ha)
   - Sufficient capital for ongoing projects
3. Comply with approved land use and urban planning
4. Obtain investment policy approval from relevant authority
5. Fulfill land use conditions:
   - Make deposit
   - Prove financial capacity
   - No land law violations, or if any, they must be fully remedied
6. Conduct environmental impact assessment
7. Acquire additional permits: construction, fire safety, food safety, etc.

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OVERVIEW OF RESORT INVESTMENT

2. Resort Investment Procedure

Investment policy approval
Within: 35 days

Land allocation or lease
Within: 20 days

Construction permit
Within: 30 days

Accommodation services
Within: 7 days

Environmental impact assessment appraisal
Within: 45 days

Other supplementary permits
Within: 30 days

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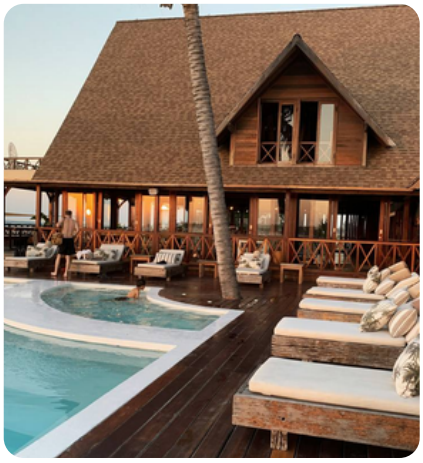
ADMINISTRATIVE PROCEDURES

Refer to the full article at: Administrative Procedures for Resort Investment: A-Z Guide 2025

CONSTRUCTION PERMIT



BUSINESS REGISTRATION

ACCOMMODATION LICENSE AND RELATED DOCUMENTS

To initiate a resort project, investors must meet basic legal requirements and thoroughly prepare the prerequisite conditions in accordance with the latest regulations as of 2025.

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ADMINISTRATIVE PROCEDURES

1. CONSTRUCTION PERMIT

- Confirm land use rights
- Prepare and complete the basic design dossier
- Conduct Environmental Impact Assessment
- Apply for investment policy approval
- Complete the dossier and submit the construction permit application
- Obtain specialized permits (if applicable)
- Notify construction commencement and supervise construction

ADMINISTRATIVE PROCEDURES

2. BUSINESS REGISTRATION

2.1 Documents

- Application for enterprise registration
- Company charter (notarized)
- List of members/founding shareholders
- Valid copies of legal documents of members/shareholders;
- Power of attorney
- Note: If the business registers a conditional business line: attach the required sub-licenses, professional certificates, statutory capital, etc., as prescribed by specialized laws.

2.2 Procedures

ADMINISTRATIVE PROCEDURES

3. RELATED DOCUMENTS

Certificate of eligibility for security and order	Certificate of eligibility for fire prevention and fighting	Certificate of food safety and hygiene eligibility
Dossier: • Application for the certificate • Copy of the Enterprise Registration Certificate • Security and order assurance plan **Submit to:** Competent Police Authority.	**Dossier:** • Application for the certificate • Copy of the Enterprise Registration Certificate • Fire prevention and fighting plan • Fire safety inspection record **Submit to:** Local Fire and Rescue Police Authority.	**Dossier:** • Application for the certificate • Copy of the Enterprise Registration Certificate • Explanation of facilities, equipment, and tools ensuring food safety **Submit to:** Competent local health authority.

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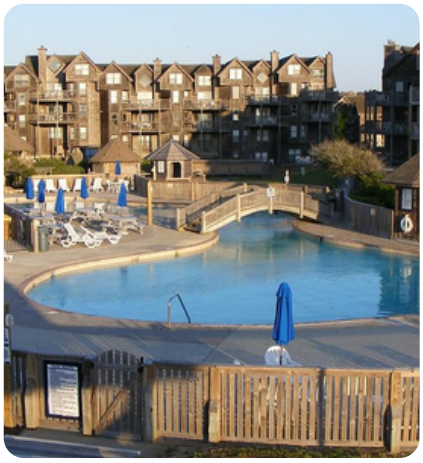
ACCOMMODATION BUSINESS STANDARDS

Refer to the full article at: Resort Accommodation Business Standards: 2025 Update

BASIC STANDARDS



SECURITY AND SAFETY STANDARDS

FIRE PREVENTION AND FIGHTING STANDARDS

In the context of Vietnam's rapidly growing tourism industry in 2025, understanding and complying with resort accommodation business standards is a key factor determining the success of any business.

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ACCOMMODATION BUSINESS STANDARDS

1. BASIC STANDARDS

Business Conditions

- Register the business
- Comply with regulations on security, fire safety, environment, and food safety
- Meet minimum standards for facilities, equipment, and tourist services

Inspection and Supervision

- Submit written notice at least 15 days before operation
- Authorities inspect and notify results within 7 working days
- Adjust and resubmit if not qualified
- Inspection can be combined with classification if applied simultaneously

Infrastructure Requirements

- At least 10 guest rooms, reception desk, shared restrooms
- Guest parking
- Kitchen, dining area, food services
- Provide and replace bedding and towels for new guests
- 24/7 staff availability

ACCOMMODATION BUSINESS STANDARDS

2. SECURITY AND SAFETY STANDARDS

Security and Order Conditions

- Legally registered, licensed, or established in Vietnam.
- The person responsible for security and order must not fall under prohibited categories; foreign nationals must hold a valid residence permit.
- Compliant with fire prevention and fighting safety requirements.

Certificate Application Procedures

Prepare the application documents

Submit one set of documents to the competent Police authority

- In person
- Via public postal service
- Through the National Public Service Portal or the Ministry of Public Security's portal

Complete the issuance of the Certificate

Process time: 4–5 days

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ACCOMMODATION BUSINESS STANDARDS

3. FIRE PREVENTION AND FIGHTING STANDARDS

Establishments under police management

- Compliant fire safety signs, layout maps
- Trained in-house FPF teams
- Approved firefighting plans
- Safe electrical, lightning, and heat sources
- Adequate systems: transport, water, communication, alarms, extinguishers, evacuation, rescue
- Design approval and FPF acceptance documents

Establishments under commune-level management

- Fulfill points 1, 3, 4
- FPF design and acceptance documents
- Compliant systems and trained personnel with assigned responsibilities

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CONSTRUCTION PLANNING

Refer to the full article at: Resort Construction Planning in Vietnam: A Comprehensive Guide for 2025

Land Use Conversion

Land Lease Term

Construction Planning Approval

CONSTRUCTION PLANNING

1. LAND USE CONVERSION

File submission
Form 02c Decree 102/2024/ND-CP

Document review

Dossier submission
- The application
- Cadastral extract/measurement
- Submission form (Form 03)
- Draft decision (Form 04c)

Decision issuance

Transfer of information to the tax authority
The land agency sends Form 04h to the tax authority

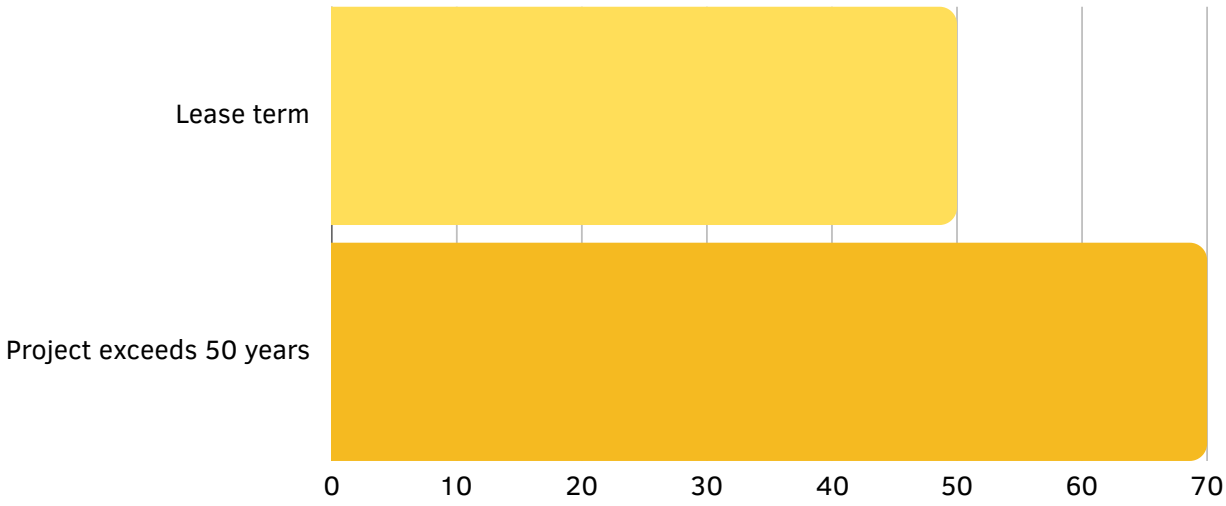
Financial obligations

Issuance of Land Use Rights Certificate
- Leased land: lease agreement (Form 05a) is signed
- Land handover on-site is conducted (Form 06)

CONSTRUCTION PLANNING

2. LAND LEASE TERM

2.1 Land lease term



2.2 Extension of land lease

- The land user must submit a renewal application no later than 6 months before lease expiry
- If this deadline is missed, renewal shall not be granted, **except in force majeure cases**

CONSTRUCTION PLANNING

3. CONSTRUCTION PLANNING APPROVAL

Formulation and approval of planning tasks

Field investigation and survey

Preparation of construction planning schemes

Evaluation and approval of planning schemes

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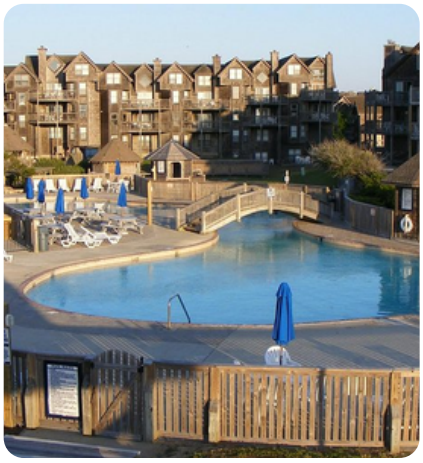
ENVIRONMENTAL IMPACT ASSESSMENT

Refer to the full article at: Environmental Impact Assessment for Resorts: A Comprehensive Guide 2025

ENVIRONMENTAL IMPACT ASSESSMENT

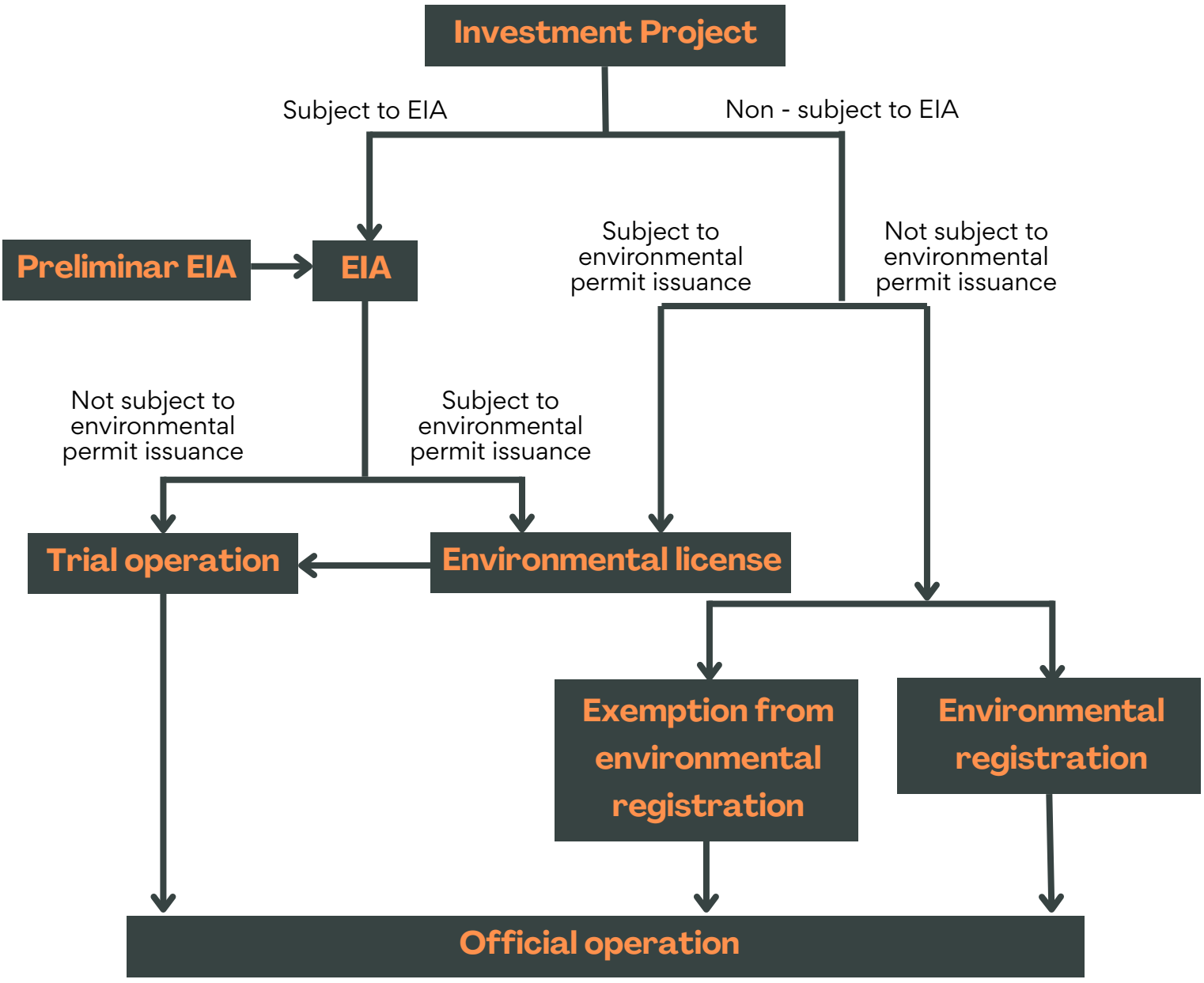


ENVIRONMENTAL STANDARDS

Amid the rapid growth of coastal resort projects, conducting Environmental Impact Assessments (EIAs) has become increasingly essential and legally mandated. EIAs not only ensure legal compliance but also contribute to sustainable development and the mitigation of negative impacts on the environment and local communities.

ENVIRONMENTAL IMPACT ASSESSMENT

1. ENVIRONMENTAL IMPACT ASSESSMENT



ENVIRONMENTAL IMPACT ASSESSMENT

2. ENVIRONMENTAL STANDARDS

- **Ambient air quality:** QCVN 05:2023/BTNMT – covers seven air quality indicators: SO_2, CO, NO_2, O_3, TSP, PM_{10}, and $PM_{2.5}$.
- **Noise levels:** QCVN 26:2010/BTNMT – all production, business, and service facilities, including resorts, must comply with noise level limits to protect tourism quality and residents' living standards.
- **Wastewater quality:** QCVN 14:2008/BTNMT – applies to domestic wastewater from residential areas, hotels, resorts, and apartments, with limits for BOD_5, COD, TSS, ammonium, coliforms, pH, etc. Will be replaced by Circular 05/2025/TT-BTNMT.

INVESTMENT INCENTIVE POLICIES

Refer to the full article at: Investment Incentive Policies for Resort Projects in Vietnam – 2025

Types of Investment Incentives

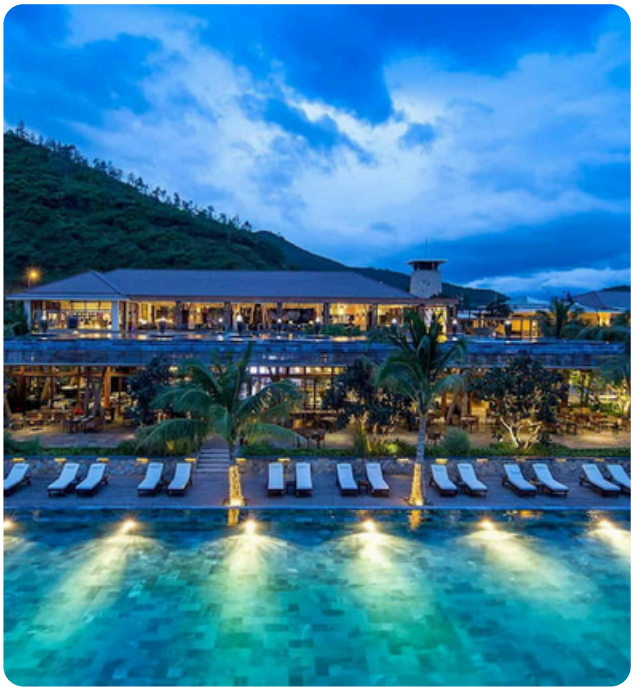
Procedures to Access Incentives

INVESTMENT INCENTIVE POLICIES

1. TYPES OF INVESTMENT INCENTIVES

Corporate income tax incentives

- Standard CIT rate
- Preferential CIT rate based on location
- Preferential CIT rate for special business types

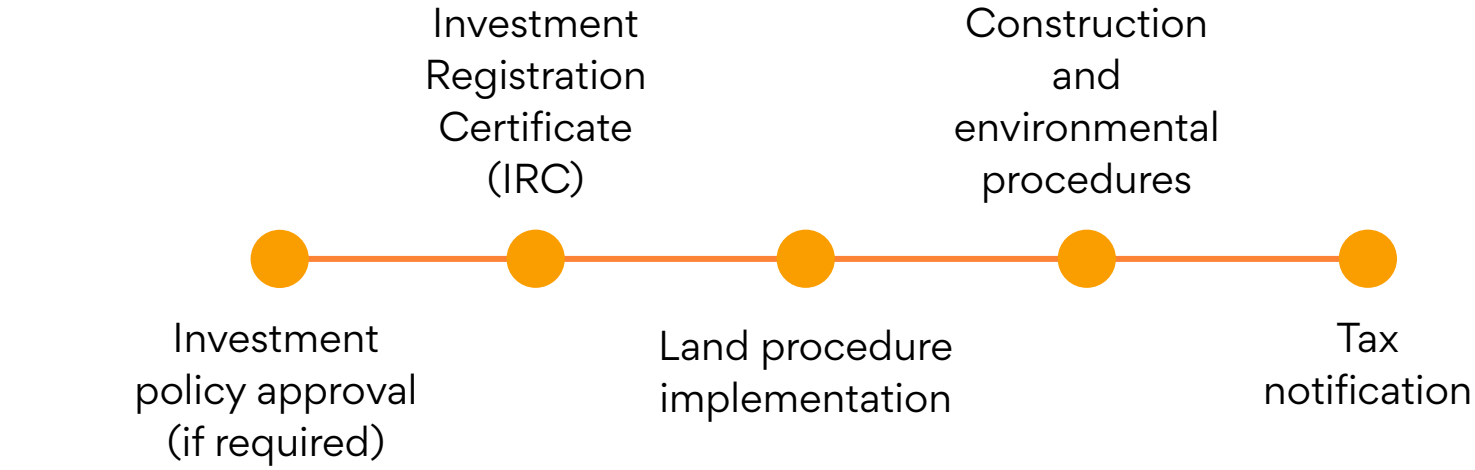


Land incentives

- Exemption or reduction of land rent
- Land rent exemption during basic construction period
- Land rent exemption/reduction based on preferential locations
- Land rent exemption/reduction combined with preferential sectors
- Preferential land rent in economic zones
- Reduction of land use fees

INVESTMENT INCENTIVE POLICIES

2. Procedures to Access Incentives



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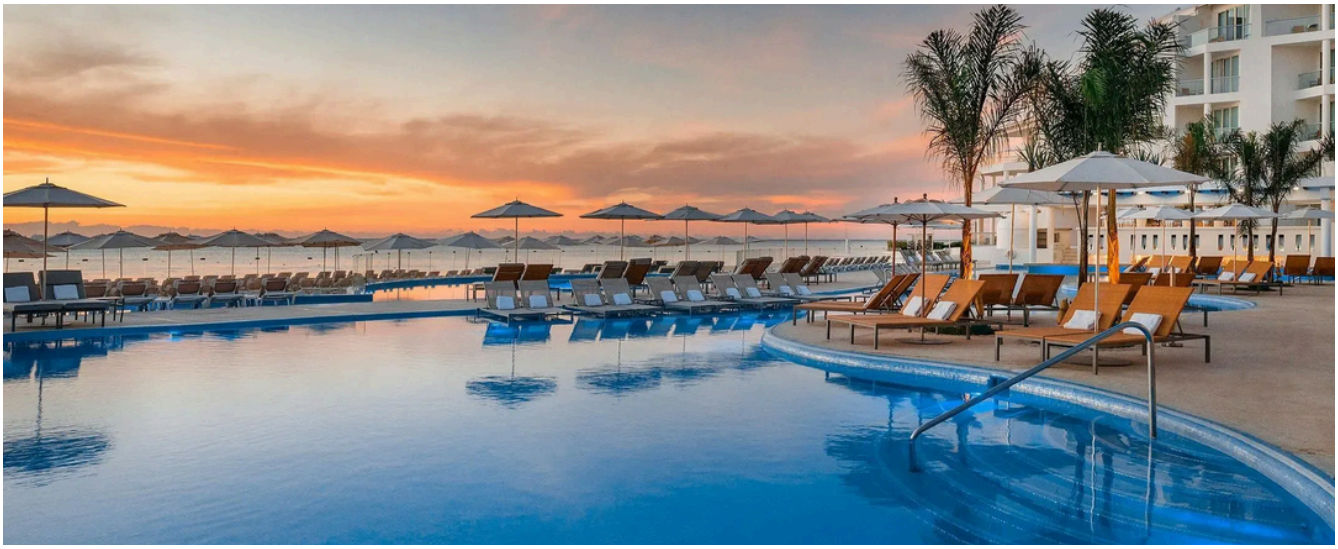
CONCLUSION

To ensure sustainable and legally compliant resort operations, strict adherence to relevant laws and regulations is essential. As the resort industry continues to grow and evolve, legal compliance not only protects the business but also enhances its reputation and long-term success.



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